



**Request for Proposals
for
Enterprise Resource Planning (ERP) System**

Request for Proposals No.: **RFP.24.25.04**

Issued: **March 3, 2025**

Submission Deadline: **April 14, 2025 11:59:59 PM PST**

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Additional Attachments:

Cowichan Tribes ERP Pricing.xlsx

Cowichan Tribes ERP Requirements.xlsx

PART 1 – INVITATION AND SUBMISSION INSTRUCTIONS

1.1 Invitation to Proponents

1.1.1 Invitation

This Request for Proposals (the “RFP”) is an invitation by Cowichan Tribes to prospective proponents to submit proposals for an **Enterprise Resource Planning (ERP) System**, as further described in Section A of the RFP Particulars (Appendix B) (the “Deliverables”).

Cowichan Tribes is a First Nation band in British Columbia, with over 5,500 members. They are part of the Coast Salish peoples and speak the Hul'q'umi'num language. Cowichan Tribes are located in the Cowichan Valley on Vancouver Island, with their main reserve near Duncan, BC.

Historically, the Cowichan people have lived in their territory for thousands of years, with archaeological evidence dating back 4,500 years. They have a rich cultural heritage, maintaining many traditional practices and customs while evolving into a modern society.

Cowichan Tribes are involved in various activities to support their community, including education, health services, economic development, and cultural preservation. They operate several programs and initiatives aimed at improving the well-being of their members and fostering a strong, vibrant community.

Cowichan Tribes is seeking to procure a cloud-based ERP system(s) to enhance operational efficiency across key functions including **finance, procurement, human resources, payroll, and asset management**. The solution should be aligned with industry best practice, provide features to automate processes, provide staff and leadership access to the information needed to effectively plan and operate, and be adaptable to evolving business needs.

Current ERP Context and Modernization Goals

Cowichan Tribes currently utilizes a custom-built platform known as **TIFIS** (Tribal Information and Financial Information System) to manage key corporate functions including finance, procurement, and payroll but also is used to manage other services specific to first nations including housing, band membership, social services and others. TIFIS has been tailored over time to address the unique requirements of Cowichan Tribes, supporting essential business processes and data management needs.

While TIFIS has successfully served as the core operational system for more than 25 years, Cowichan Tribes has made the strategic decision to move to a commercially supported cloud-based ERP platform. The scope of this RFP is to not replace all TIFIS capabilities, but only the functionality identified in the ERP requirements. The table below provides a summary perspective of current state and desired future state.

Function	Current State	Target State for RFP
Finance	TIFIS	New ERP
Procurement	TIFIS	New ERP
HR	TIFIS and Excel	New ERP
Payroll	TIFIS	New ERP
Asset Management	Managed in Excel	New ERP
All other TIFIS Processes (Housing, Membership, etc.)	TIFIS	TIFIS

Key Notes:

1. While services to build an integration between the new ERP and TIFIS is not in scope for this RFP, integration capabilities will be assessed and are included in the requirements.
2. Cowichan Tribes acknowledges that their needs may not be best met within one platform and is therefore open to an ERP solution that may involve multiple integrated systems.

Data Conversion Details

Cowichan Tribes will be looking to the vendor to include costs for data conversion. Details on records counts are below. Cowichan Tribes would like the vendor to use best practices to determine years of data to convert unless otherwise specified.

Function	Approximate Record Counts and Notes
Finance	• Detailed transactions for one year • Summarized balances for previous 3 years • Possible restructure to GL structure
Procurement	• Vendors Records: 10,000 (includes active/inactive as well as citizens)
HR	• Active Employee Records: 500
Payroll	• Current year-to-date payroll data
Asset Management	• Asset Records: 250

1.1.2 Primary Proponent

The proposal must be submitted by a single legal entity that will serve as the primary proponent. If the proposal involves a partnership or joint submission from two (2) or more entities, one (1) entity must be designated as the primary proponent, responsible for negotiating and entering into the contract with Cowichan Tribes. The primary proponent will be accountable for the overall performance and delivery of the specified Deliverables.

1.2 RFP Contact

For the purposes of this procurement process, the “RFP Contact” will be:

Jeremy Elliott
procurement@cowichantribes.com

Proponents and their representatives are not permitted to contact any employees, officers, agents, elected or appointed officials, or other representatives of Cowichan Tribes, other than the RFP Contact, concerning matters regarding this RFP. Failure to adhere to this rule may result in the disqualification of the proponent and the rejection of the proponent’s proposal.

1.3 Contract for Deliverables**1.3.1 Type of Contract**

The selected proponent will be requested to enter into direct contract negotiations to finalize an agreement with Cowichan Tribes for the provision of the Deliverables. The terms and conditions

found in the Form of Agreement (Appendix A) are to form the basis for commencing negotiations between Cowichan Tribes and the selected proponent.

1.3.2 Term of Contract

The contract will involve two parts. The first part will be for the implementation of the ERP and the second part will be for the licensing. The term of the licensing and support agreement is to be for a period of five years, with an option in favour of Cowichan Tribes to extend the agreement on the same terms and conditions.

1.4 RFP Timetable

1.4.1 Key Dates

Issue Date of RFP	March 3, 2025
Deadline for Questions	March 17, 2025 11:59:59 PM PST
Deadline for Issuing Addenda	March 24, 2025 11:59:59 PM PST
Submission Deadline	April 14, 2025 11:59:59 PM PST
Stage I and Stage II: Mandatory & Technical Submission Review	April 14 – April 21
Mandatory Rectification Period Deadline	April 24
Stage III: Functional Requirements Review	April 24 – April 28
Functional Requirements Rectification Period Deadline	May 2
Stage IV: Narrative Proposal and Pricing Evaluation	May 23
Notification of Shortlisting	May 26
Stage V: Vendor Demonstrations	June
Stage VI: Final Ranking and Contract Negotiations	July
Anticipated Execution of Agreement	Fall 2025

The RFP timetable is tentative only and may be changed by Cowichan Tribes at any time. For greater clarity, business days means all days that Cowichan Tribes is open for business.

1.4.2 Site Visit / Pre-Bid Meeting (if applicable)

There is no requirement for a site visit or pre-bid meeting in relation to this RFP.

1.5 Submission of Proposals

1.5.1 Proposals to be Submitted at Prescribed Location

Proposals are to be submitted directly through the BCBid platform where the RFP is posted. No physical submission will be accepted unless specifically requested.

1.5.2 Proposals to be Submitted on Time

Proposals must be submitted at the location set out above on or before the Submission Deadline. Proposals submitted after the Submission Deadline will be rejected.

1.5.3 Proposals to be Submitted in Prescribed Format

Proponents must submit their proposals in the prescribed format, with all required forms and narrative responses provided in PDF format and pricing details and requirements submitted in Excel format as provided as additional documentation.

1.5.4 Amendment of Proposals

Proponents may amend their proposals prior to the Submission Deadline by submitting the amendment in a sealed package prominently marked with the RFP title and number and the full legal name and return address of the proponent to the location set out above. Any amendment

should clearly indicate which part of the proposal the amendment is intended to amend or replace.

1.5.5 Withdrawal of Proposals

At any time throughout the RFP process until the execution of a written agreement for provision of the Deliverables, a proponent may withdraw a submitted proposal. To withdraw a proposal, a notice of withdrawal must be sent to the RFP Contact and must be signed by an authorized representative of the proponent. Cowichan Tribes is under no obligation to return withdrawn proposals.

[End of Part 1]

PART 2 – EVALUATION, NEGOTIATION AND AWARD

2.1 Stages of Evaluation and Negotiation

Cowichan Tribes will conduct proposal evaluations and negotiations in the following stages:

2.2 Stage I – Mandatory Submission Requirements

Stage I will consist of a review to determine which proposals comply with all of the mandatory submission requirements in Section C of the RFP Particulars (Appendix B). If a proposal fails to satisfy all of the mandatory submission requirements, Cowichan Tribes will issue the proponent a rectification notice identifying the deficiencies and providing the proponent an opportunity to rectify the deficiencies. If the proponent fails to satisfy the mandatory submission requirements within the Rectification Period, its proposal will be rejected. The Rectification Period will begin to run from the date and time that Cowichan Tribes issues a rectification notice to the proponent.

2.3 Stage II – Mandatory Technical Requirements

Cowichan Tribes will review proposals to determine compliance with the mandatory technical requirements in Section D of the RFP Particulars (Appendix B). If a proposal fails to meet these requirements, Cowichan Tribes will issue a rectification notice outlining the deficiencies and allowing for correction. This process may follow the rectification of mandatory submission requirements. Proposals not rectified within the Rectification Period will be rejected.

2.4 Stage III – Evaluating the Functional Requirements

In this stage, each Proponent's Functional Requirements sheet will be evaluated, with scores assigned to functional areas and an overall score. To advance, a proposal must score at least 80% for functional fit. If it falls short, the vendor will be notified of deficiencies and given a rectification period. This process follows mandatory submission requirements in Section C of the RFP Particulars (Appendix B). Proposals still below 80% after rectification will not proceed further.

2.5 Stage IV – Evaluating the Narrative and Pricing

This stage will consist of two sub-stages including:

2.5.1 Narrative

Cowichan Tribes will review the Narrative Proposal for adherence to the instructions and content requirements in Section A of the RFP Particulars (Appendix B). Proposals that fail to address the specified content will be considered non-compliant and may not proceed to the next stage of evaluation. Vendors must present their solutions clearly and concisely, addressing each section in Section A. Proposals that fail to meet formatting or content requirements may require clarification during the rectification period.

2.5.1 Pricing

Cowichan Tribes will calculate a score for the pricing of each qualified proposal based on the method in Section G of the RFP Particulars (Appendix B). Price evaluation will occur after assessing mandatory submission and technical requirements, the requirements sheet, and the narrative proposal.

If a proponent's pricing appears abnormally low, Cowichan Tribes may request a detailed explanation to ensure all Deliverables are accounted for. Failure to justify the pricing may result in rejection. Proposals with unbalanced pricing—such as nominal prices for some Deliverables and inflated prices for others, including “front-loaded” pricing—may also be rejected.

At the conclusion of the evaluation, Cowichan Tribes will conduct a cumulative assessment and invite the top two or three vendors to provide a demonstration at their discretion.

2.6 Stage V – Vendor Demonstrations

Vendors selected for the demonstration stage will be required to present their proposed solutions in accordance with the demo script that will be provided by Cowichan Tribes. The script will outline the key functionalities and scenarios that must be addressed during the demonstration. To successfully pass this stage, vendors must demonstrate how their solution meets the specified requirements and effectively addresses the use cases outlined in the script. Failure to follow the script or demonstrate the required capabilities may impact the evaluation and progression to the next stage.

2.7 Stage VI – Final Ranking and Contract Negotiations

2.7.1 Ranking of Proponents

After the completion of Stage V, scores from all previous stages: Stage III through Stage V will be aggregated and the proponents will be ranked based on their total scores. The top-ranked proponent will receive a written invitation to enter into direct contract negotiations to finalize the agreement with Cowichan Tribes. In the event of a tie, the selected proponent will be the proponent with the highest score on the non-price-rated criteria (Narrative Proposal and Functional Fit).

2.7.2 Contract Negotiation Process

Any negotiations will be subject to the process rules contained in the Terms and Conditions of the RFP Process (Part 3) and will not constitute a legally binding offer to enter into a contract on the part of Cowichan Tribes or the proponent, and there will be no legally binding relationship created with any proponent prior to the execution of a written agreement. The terms and conditions found in the Form of Agreement (Appendix A) are to form the basis for commencing negotiations between Cowichan Tribes and the selected proponent. Negotiations may include requests by Cowichan Tribes for supplementary information from the proponent to verify, clarify, or supplement the information provided in its proposal or to confirm the conclusions reached in the evaluation, and may include requests by Cowichan Tribes for improved pricing or performance terms from the proponent.

2.7.3 Time Period for Negotiations

Cowichan Tribes intends to conclude negotiations and finalize the agreement with the top-ranked proponent during the Contract Negotiation Period, commencing from the date Cowichan Tribes invites the top-ranked proponent to enter negotiations. A proponent invited to enter into direct contract negotiations should therefore be prepared to satisfy the pre-conditions of award listed in Section E of the RFP Particulars (Appendix B), provide requested information in a timely fashion, and conduct its negotiations expeditiously.

2.7.4 Failure to Enter into Agreement

If the pre-conditions of award listed in Section E of the RFP Particulars (Appendix B) are not satisfied or if the parties cannot conclude negotiations and finalize the agreement for the Deliverables within the Contract Negotiation Period, Cowichan Tribes may discontinue negotiations with the top-ranked Proponent and may invite the next-best-ranked Proponent to enter into negotiations. This process will continue until an agreement is finalized, until there are no more proponents remaining that are eligible for negotiations, or until Cowichan Tribes elects to cancel the RFP process.

2.7.5 Notification of Negotiation Status

Waitlisted Proponents that become eligible for contract negotiations may be notified at the commencement of the negotiation process with the top-ranked proponent.

2.8 Reservation of Rights and Discretion Authority

Notwithstanding any other provision of this RFP, Cowichan Tribes reserves the right, in its sole discretion, to take any action it deems necessary or appropriate at any stage of the procurement process. This includes, without limitation, the right to modify the process, waive non-material deficiencies or requirements, reject any or all proposals, negotiate with any or all proponents, or cancel the RFP in whole or in part, without liability or obligation to any proponent. Cowichan Tribes' decisions will be final and binding, and the exercise of its discretion will be in the best interest of Cowichan Tribes.

[End of Part 2]

PART 3 – TERMS AND CONDITIONS OF THE RFP PROCESS

3.1 General Information and Instructions

3.1.1 Proponents to Follow Instructions

Proponents should structure their proposals in accordance with the instructions in this RFP. Where information is requested in this RFP, any response made in a proposal should reference the applicable section numbers of this RFP.

A proponent who submits conditions, options, variations, or contingent statements, either as part of its proposal or after receiving notice of selection, may be disqualified.

3.1.2 Proposals in English

All proposals are to be in English only.

3.1.3 No Incorporation by Reference

The entire content of the proponent's proposal should be submitted in a fixed format, and the content of websites or other external documents referred to in the proponent's proposal, but not attached, will not be considered to form part of its proposal.

3.1.4 Past Performance

In the evaluation process, Cowichan Tribes may consider the proponent's past performance or conduct on previous contracts with Cowichan Tribes or other institutions.

3.1.5 Information in RFP Only an Estimate

Cowichan Tribes and its advisers make no representation, warranty, or guarantee as to the accuracy of the information contained in this RFP or issued by way of addenda. Any quantities shown or data contained in this RFP or provided by way of addenda are estimates only and are for the sole purpose of indicating to proponents the general scale and scope of the Deliverables. It is the proponent's responsibility to obtain all the information necessary to prepare a proposal in response to this RFP.

3.1.6 Proponents to Bear Their Own Costs

The proponent will bear all costs associated with or incurred in the preparation and presentation of its proposal, including, if applicable, costs incurred for interviews or demonstrations.

3.1.7 Proposal to be Retained by Cowichan Tribes

Cowichan Tribes will not return the proposal or any accompanying documentation submitted by a proponent.

3.1.8 No Guarantee of Volume of Work or Exclusivity of Contract

Cowichan Tribes makes no guarantee of the value or volume of work to be assigned to the selected proponent. The agreement to be negotiated with the selected proponent will not be an exclusive contract for the provision of the described Deliverables. Cowichan Tribes may contract with others for goods and services the same as or similar to the Deliverables or may obtain such goods and services internally.

3.2 Communication after Issuance of RFP

3.2.1 Proponents to Review RFP

Proponents should promptly examine all of the documents comprising this RFP and may direct questions or seek additional information in writing by email to the RFP Contact on or before the Deadline for Questions. No such communications are to be sent or initiated through any other

means. Cowichan Tribes is under no obligation to provide additional information, and Cowichan Tribes is not responsible for any information provided by or obtained from any source other than the RFP Contact. It is the responsibility of the proponent to seek clarification on any matter it considers to be unclear. Cowichan Tribes is not responsible for any misunderstanding on the part of the proponent concerning this RFP or its process.

3.2.2 All New Information to Proponents by Way of Addenda

This RFP may be amended only by addendum in accordance with this section. If Cowichan Tribes, for any reason, determines that it is necessary to provide additional information relating to this RFP, such information will be communicated to all proponents by addendum. Each addendum forms an integral part of this RFP and may contain important information, including significant changes to this RFP. Proponents are responsible for obtaining all addenda issued by Cowichan Tribes.

3.2.3 Post-Deadline Addenda and Extension of Submission Deadline

If Cowichan Tribes determines that it is necessary to issue an addendum after the Deadline for Issuing Addenda, Cowichan Tribes may extend the Submission Deadline for a reasonable period of time.

3.2.4 Verify, Clarify, and Supplement

When evaluating proposals, Cowichan Tribes may request further information from the proponent or third parties in order to verify, clarify, or supplement the information provided in the proponent's proposal. Cowichan Tribes may revisit, re-evaluate, and rescore the proponent's response or ranking on the basis of any such information.

3.3 Notification and Debriefing

3.3.1 Notification to Other Proponents

Once an agreement is executed by Cowichan Tribes and a proponent, the other proponents may be notified directly in writing and will be notified by public posting of the outcome of the procurement process.

3.3.2 Debriefing

Proponents may request a debriefing after receipt of a notification of the outcome of the procurement process. All requests must be in writing to the RFP Contact and must be made within thirty (30) days of such notification. The RFP Contact will contact the proponent's representative to schedule the debriefing. Debriefings may occur in person at Cowichan Tribes' location or by way of conference call or other remote meeting format as prescribed by Cowichan Tribes.

3.3.3 Procurement Protest Procedure

Any proponent with concerns about the RFP process is required to attend a debriefing prior to proceeding with a protest.

If, after attending a debriefing, the proponent wishes to challenge the RFP process, it should provide written notice to the RFP Contact in accordance with applicable procurement protest procedures. The written notice must contain:

- (a) a clear statement as to which procurement the proponent wishes to challenge;
- (b) a clear explanation of the proponent's concerns with the procurement, including specifics as to why it disagrees with the procurement process or its outcome; and
- (c) the proponent's contact details, including name, telephone number, and email address.

Cowichan Tribes will send an initial response to acknowledge receipt of the proponent's notice and indicate the date by which Cowichan Tribes will provide the proponent with a formal response.

3.4 Conflict of Interest and Prohibited Conduct

3.4.1 Conflict of Interest

For the purposes of this RFP, the term "Conflict of Interest" includes, but is not limited to, any situation or circumstance where:

- (a) in relation to the RFP process, the proponent has an unfair advantage or engages in conduct, directly or indirectly, that may give it an unfair advantage, including, but not limited to:
 - (i) having or having access to confidential information of Cowichan Tribes in the preparation of its proposal that is not available to other proponents;
 - (ii) having been involved in the development of the RFP, including having provided advice or assistance in the development of the RFP;
 - (iii) receiving advice or assistance in the preparation of its response from any individual or entity that was involved in the development of the RFP;
 - (iv) communicating with any person with a view to influencing preferred treatment in the RFP process (including, but not limited to, the lobbying of decision-makers involved in the RFP process); or
 - (v) engaging in conduct that compromises, or could be seen to compromise, the integrity of the open and competitive RFP process or render that process non-competitive or unfair; or
- (b) in relation to the performance of its contractual obligations under a contract for the Deliverables, the proponent's other commitments, relationships, or financial interests:
 - (i) could, or could be seen to, exercise an improper influence over the objective, unbiased, and impartial exercise of its independent judgement; or
 - (ii) could, or could be seen to, compromise, impair, or be incompatible with the effective performance of its contractual obligations.

3.4.2 Disqualification for Conflict of Interest

Cowichan Tribes may disqualify a proponent for any conduct, situation, or circumstances, determined by Cowichan Tribes, in its sole and absolute discretion, to constitute a Conflict of Interest as defined above.

An existing supplier of Cowichan Tribes may be precluded from participating in the RFP process in instances where Cowichan Tribes has determined that the supplier has a competitive advantage that cannot be adequately addressed to mitigate against unfair advantage. This may include, without limitation, situations in which an existing supplier is in a position to create unnecessary barriers to competition through the manner in which it performs its existing contracts, or situations where the incumbent fails to provide the information within its control or otherwise engages in conduct obstructive to a fair competitive process.

3.4.3 Disqualification for Prohibited Conduct

Cowichan Tribes may disqualify a proponent, rescind an invitation to negotiate, or terminate a contract subsequently entered into if Cowichan Tribes determines that the proponent has engaged in any conduct prohibited by this RFP.

3.4.4 Prohibited Proponent Communications

Proponents must not engage in any communications that could constitute a Conflict of Interest and should take note of the Conflict of Interest declaration set out in the Submission Form (Appendix C).

3.4.5 Proponent Not to Communicate with Media

Proponents must not, at any time directly or indirectly, communicate with the media in relation to this RFP or any agreement entered into pursuant to this RFP without first obtaining the written permission of the RFP Contact.

3.4.6 No Lobbying

Proponents must not, in relation to this RFP or the evaluation and selection process, engage directly or indirectly in any form of political or other lobbying whatsoever to influence the selection of the selected proponent(s).

3.4.7 Illegal or Unethical Conduct

Proponents must not engage in any illegal business practices, including activities such as bid-rigging, price-fixing, bribery, fraud, coercion, or collusion. Proponents must not engage in any unethical conduct, including lobbying, as described above, or other inappropriate communications; offering gifts to any employees, officers, agents, elected or appointed officials, or other representatives of Cowichan Tribes; deceitfulness; submitting proposals containing misrepresentations or other misleading or inaccurate information; or any other conduct that compromises or may be seen to compromise the competitive process provided for in this RFP.

3.4.8 Supplier Suspension

Cowichan Tribes may suspend a supplier from participating in its procurement processes for prescribed time periods based on past performance or based on inappropriate conduct, including, but not limited to, the following:

- (a) illegal or unethical conduct as described above;
- (b) the refusal of the supplier to honour its submitted pricing or other commitments;
- (c) engaging in litigious conduct, bringing frivolous or vexatious claims in connection with Cowichan Tribes' procurement processes or contracts, or engaging in conduct obstructive to a fair competitive process; or
- (d) any conduct, situation, or circumstance determined by Cowichan Tribes, in its sole and absolute discretion, to have constituted an undisclosed Conflict of Interest.

In advance of a decision to suspend a supplier, Cowichan Tribes will notify the supplier of the grounds for the suspension and the supplier will have an opportunity to respond within a timeframe stated in the notice. Any response received from the supplier within that timeframe will be considered by Cowichan Tribes in making its final decision.

3.5 Confidential Information

3.5.1 Confidential Information of Cowichan Tribes

All information provided by or obtained from Cowichan Tribes in any form in connection with this RFP either before or after the issuance of this RFP:

- (a) is the sole property of Cowichan Tribes and must be treated as confidential;
- (b) is not to be used for any purpose other than replying to this RFP and the performance of any subsequent contract for the Deliverables;
- (c) must not be disclosed without prior written authorization from Cowichan Tribes; and
- (d) must be returned by the proponent to Cowichan Tribes immediately upon the request of Cowichan Tribes.

3.5.2 Confidential Information of Proponent

A proponent should identify any information in its proposal or any accompanying documentation supplied in confidence for which confidentiality is to be maintained by Cowichan Tribes. The confidentiality of such information will be maintained by Cowichan Tribes, except as otherwise required by law or by order of a court or tribunal. Proponents are advised that their proposals will, as necessary, be disclosed, on a confidential basis, to advisers retained by Cowichan Tribes to advise or assist with the RFP process, including the evaluation of proposals. If a proponent has any questions about the collection and use of personal information pursuant to this RFP, questions are to be submitted to the RFP Contact.

3.6 Procurement Process Non-Binding

3.6.1 No Contract A and No Claims

This procurement process is not intended to create and will not create a formal, legally binding bidding process and will instead be governed by the law applicable to direct commercial negotiations. For greater certainty, and without limitation:

- (a) this RFP will not give rise to any Contract-A-based tendering law duties or any other legal obligations arising out of any process contract or collateral contract; and
- (b) neither the proponent nor Cowichan Tribes will have the right to make any claims (in contract, tort, or otherwise) against the other with respect to the award of a contract, failure to award a contract, or failure to honour a proposal submitted in response to this RFP.

3.6.2 No Contract until Execution of Written Agreement

This RFP process is intended to identify prospective suppliers for the purposes of negotiating potential agreements. No legal relationship or obligation regarding the procurement of any good or service will be created between the proponent and Cowichan Tribes by this RFP process until the successful negotiation and execution of a written agreement for the acquisition of such goods and/or services.

3.6.3 Non-Binding Price Estimates

While the pricing information provided in proposals will be non-binding prior to the execution of a written agreement, such information will be assessed during the evaluation of the proposals and the ranking of the proponents. Any inaccurate, misleading, or incomplete information, including withdrawn or altered pricing, could adversely impact any such evaluation or ranking or the decision of Cowichan Tribes to enter into an agreement for the Deliverables.

3.6.4 Cancellation

Cowichan Tribes may cancel or amend the RFP process without liability at any time.

3.7 Governing Law and Interpretation

These Terms and Conditions of the RFP Process (Part 3):

- (a) are intended to be interpreted broadly and independently (with no particular provision intended to limit the scope of any other provision);
- (b) are non-exhaustive and will not be construed as intending to limit the pre-existing rights of the parties to engage in pre-contractual discussions in accordance with the common law governing direct commercial negotiations; and
- (c) are to be governed by and construed in accordance with the laws of the province of British Columbia and the federal laws of Canada applicable therein.

[End of Part 3]

APPENDIX A – FORM OF AGREEMENT

BETWEEN:

Cowichan Tribes

AND:

[The selected Vendor]

(referred to as the “Vendor”)

In consideration of their respective agreements set out herein, the parties covenant and agree as follows:

1. Contract Documents

The contract between the parties in respect of:

Enterprise Resource Planning (ERP) System

Is comprised of the following documents, which are collectively referred to as the “Contract”:

- (a) This Agreement;
- (b) The Deliverables, Mandatory Submission Requirements, Mandatory Technical Requirements, Pre-conditions of Award, and Evaluation Criteria attached hereto as Appendix B – RFP Particulars;
- (c) The Terms and Conditions of the RFP process attached in Part 3;
- (d) The **Enterprise Resource Planning (ERP) System, RFP-[Enter RFP #]**, including any addenda; and
- (e) All the documentation submitted by the Vendor in response to this RFP.

2. Interpretive Value of Contract Documents

Any ambiguity, conflict, or inconsistency between or among the documents comprising the Contract will be resolved by giving precedence to the express terms of the documents in the order in which they appear in Appendix B – RFP Particulars, so that a first-mentioned document shall prevail notwithstanding any term or aspect of a later-mentioned document.

3. Execution

This Agreement may be executed and (i) delivered by facsimile transmission or (ii) scanned and delivered by electronic transmission, and when so executed and delivered, will be deemed an original.

IN WITNESS WHEREOF the parties hereto have executed this Agreement as of the date written below.

Cowichan Tribes

Signature:

Name:

Title:

Date of Signature:

I have the authority to bind Cowichan Tribes.

[Insert Vendor's Full Legal Name**]**

Signature:

Name:

Title:

Date of Signature:

I have the authority to bind the Vendor.

APPENDIX B – RFP PARTICULARS

A. THE DELIVERABLES

The deliverables for this RFP are detailed in the table below.

Deliverable (Attachment Format)	Details and Location
Signed Submission Form (PDF)	Form located in <i>Appendix C</i> .
Narrative Response (PDF)	Required content detailed in <i>Narrative Response Request</i> , located just below.
Pricing Sheet (Excel)	Described in Appendix B – Section G. Template for workbook provided - <i>Cowichan Tribes ERP Pricing.xlsx</i>
Requirements (Excel)	Instructions are in the provided requirements workbook - <i>Cowichan Tribes ERP Requirements.xlsx</i>

Narrative Response Request

Proponents are requested to organize their narrative response as follows:

Section 1 <i>Executive Summary</i>	• Provide an understanding of the industry and regulatory environment in which Cowichan Tribes operates in. • Provide a high-level understanding of the scope, objectives, and requirements presented in the RFP.
Section 2 <i>Proponent Overview and Capabilities</i>	• Proponent background, organizational structure, and location of head office in Canada • Address and location of the office(s) from which work will be performed • Number of years in business • Size of organization by annual operating revenue, number of employees • Description of the range of activities and services provided by the Proponent • Account and contract management structure • Description of how the corporate-wide experience and expertise will be brought to bear on the proposed work
Section 3 <i>Finance Overview</i>	• In addition to the Requirements Sheet responses, provide a brief overview of how the system addresses the following Finance-related functionalities and requirements of Cowichan Tribes: ○ Core Finance ○ Budgeting ○ Fixed Assets & Job Cost ○ General Accounting ○ Property Management

	○ Reporting
Section 4 <i>Procurement Overview</i>	• In addition to the Requirements Sheet responses, provide a brief overview of how the system addresses the following Procurement-related functionalities and requirements of Cowichan Tribes: ○ Expense Management ○ Inventory Management ○ P-card Management ○ Purchase Order and Requisition ○ Vendor Management
Section 5 <i>Human Resources (HR) Overview</i>	• In addition to the Requirements Sheet responses, provide a brief overview of how the system addresses the following HR-related functionalities and requirements of Cowichan Tribes: ○ Talent Acquisition / Recruitment Process ○ Employee Lifecycle ▪ Onboarding to Offboarding ▪ Record Maintenance ▪ Educational development ▪ Tracking educational / professional credentials ▪ Succession ○ Benefits Management ○ Organization Chart ○ Timesheet Management ○ Recruitment, Operations and Timesheet Reporting • If the solution does not include a HR management and timesheet component, please indicate how these features would be either integrated or implemented with the proposed system. (i.e. through an HCM or Payroll partner)
Section 6 <i>Payroll Overview</i>	• In addition to the Requirements Sheet responses, provide an overview of how the system addresses the following Payroll-related functionalities and requirements of Cowichan Tribes: ○ Community Rent Payments ○ Payroll Management ○ Payroll Reporting • If the solution does not include a Payroll and timesheet component, please indicate how these features would be either integrated or implemented with the proposed system. (i.e. through an HCM or Payroll partner)
Section 7 <i>Asset Management Overview</i>	• In addition to the Requirements Sheet responses, provide a brief overview of how the system addresses the following Asset Management-related functionalities and requirements of Cowichan Tribes: ○ Asset Records ○ Asset Maintenance ○ Work Order Management

	○ Reporting
Section 8 <i>Technical</i>	• Hosting and Solution Overview and Diagrams: Provide an overview (including supporting diagrams) of the proposed system(s) including information on all system modules, cloud hosting platform(s), the version of the system(s) proposed, and any third-party products. • Third Party Integrations: Provide any relevant technical details on any third-party integrations, detailing if they out of the box or custom and how they will be managed. • Custom Integrations Development Capabilities: Describe the capabilities of the platforms to integrate with other systems, including any on premise custom solutions at Cowichan Tribes. Detail capabilities such as APIs or tools (export/imports) that would enable other system integrations beyond the ones proposed as part of the RFP response. • Platform and Operational Security: Provide a description of how the proposed systems meet or exceed industry security standards and how the Proponent addresses on-going and emerging privacy and cybersecurity risks. Provide a list of third-party vendors who support cybersecurity practices within the organization
Section 9 <i>Implementation Services</i>	Respondents must describe the methodology they propose for the ERP implementation. The description must include: • Overall Approach ○ Indicate whether the methodology is waterfall, agile, hybrid, or another framework. ○ Justify the suitability of the proposed methodology for our organization's context. • Project Phases Describe each phase, including but not limited to: ○ Planning & Initiation: Requirements gathering, resource planning, and risk management. ○ Design & Configuration: How design decisions will be validated with key stakeholders. ○ Build & Integration: Approach to iterative development, configuration, and testing of integrations. ○ Data Migration: ▪ Approach to data mapping, cleansing, transformation, and validation. ▪ Strategy for multiple rounds of data migration testing. ▪ Final cutover data migration plan, ensuring minimal disruption. ▪ Ongoing reconciliation and issue resolution processes.

	○ Testing & Validation: How functional, integration, performance, and user acceptance testing will be conducted. ○ Deployment & Go-Live Support: Cutover plans, training approach, and post-implementation support. ○ Change Management: Approach to stakeholder engagement, communications, and training. • Agile Elements (If Applicable) ○ How user stories will be developed and prioritized. ○ Sprint cadence and structure. ○ Role of product owners and end users in sprint reviews and backlog grooming. • Governance & Quality Assurance ○ Project governance structure, including steering committee involvement. ○ Mechanisms for ensuring quality, meeting timelines, and adhering to scope. • Risk Management ○ Approach to identifying, tracking, and mitigating risks throughout the project lifecycle. • Tools & Technology ○ Specify tools used for project tracking (e.g., Jira, Azure DevOps), documentation, and testing.
Section 10 <i>Transition to Ongoing Support / Application Maintenance</i>	Detail the services you will provide to transition the implementation to a support team and what services that support team will provide. Provide specific on: • Support desk service and standard service level agreement • Process to upgrade/transition to new releases of the platform(s) • If there are integrations, how the integrations will be maintained as individual systems are upgraded
Section 11 <i>References</i>	At least two and at most five references for implementations involving the proposed solutions in Canada. Preference is for references to be First Nation clients. Each reference must include: • Name of organization • Contact details of reference including name, title, email, and phone number • Description of the products implemented • Brief description of the services provided • Timeframe for the work completed
Section 12 <i>Legal, Litigation, and Terms and Conditions</i>	• Provide a letter or a certificate of clearance from the Worker's Compensation Board that demonstrates the Proponent is in good standing • Provide information regarding any relevant litigation within the last five years or any pending litigation that could impact the Proponent's ability to provide the work

	• Provide sample Service Level Agreement(s) proposed for this system(s) support <i>Note: The successful Proponent must meet credit requirements as established by Cowichan Tribes in its sole discretion.</i>
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B. MATERIAL DISCLOSURES

MNP provided consulting support to gather requirements and develop the RFP.

C. MANDATORY SUBMISSION REQUIREMENTS

Each Proposal must also consist of the following components:

1. The Proposal must be received by the Submission Deadline indicated in **1.4 RFP Timetable** and must be submitted using the submission method set out in 1.5 Submission of Proposals.
2. The Proposal must be in English.
3. A completed **Submission Form** in PDF format which is signed by an authorized representative of the proponent described in Appendix C.
4. A completed **Narrative Response** in PDF format which follows the table contents in Appendix B – Section A.
5. A completed **Pricing Excel Workbook** described in Appendix B – Section G. Template for workbook provided.
6. A completed **Requirements Excel Workbook**. Instructions are in the provided requirements workbook.

D. MANDATORY TECHNICAL REQUIREMENTS

The following sets out the mandatory technical requirements of the proponent and the proposed solution:

1. Support for organizations operating in Canada including support for Canadian taxes and Canadian Payroll.
2. Vendor has experience implementing solutions for First Nations in Canada.
3. The solution must be hosted in Canada and stores all data within Canada.
4. Implementation vendor(s) can demonstrate they have at least five years' experience implementing Finance, HR, Payroll, and Asset Management solutions.
5. Solution is cloud based.
6. The solutions are SOC2 Type 2 compliant or equivalent.

Failure to meet the mandatory technical will result in disqualification from consideration.

E. PRE-CONDITIONS OF AWARD

Pre-conditions of Award are assessed on a pass/fail basis and are required only from the selected proponent and must be met as a pre-condition to signing and awarding the tendered contract. Pre-conditions include:

- **Reference Checks:** Cowichan Tribes will follow up with the references you submitted. Details on reference submission requirements are in section 10 of the Narrative response.

- **Confirm Project Team Members:** Confirm the designated project team members, including their roles and qualifications. Any substitutions of team members must be approved by Cowichan Tribes.
- **Signed Contract:** Execute a contract based on the terms and conditions agreed upon, including deliverables, timelines, and payment schedules.

F. EVALUATION CRITERIA

The following sets out the categories, weightings, and descriptions of the rated criteria of the RFP.

Cowichan Tribes may disqualify a vendor that does not meet the threshold noted for each category.

Criteria Category	Weighting (Points)	Threshold
Functional Fit (Requirements Worksheet)	35	28 (80%)
Narrative Proposal	20	14 (70%)
Pricing (see Section G below)	15	10.5 (70%)
Vendor Demonstration	30	21 (70%)
Total Points	100	

G. PRICE EVALUATION METHOD

Pricing is worth 15 points of the total score.

Pricing will be scored based on a pricing formula using the rates set out in the Proponent's submitted Pricing Sheet (Attachment 2). Each proponent will receive a percentage of the total possible points allocated to price, which will be calculated in accordance with the following formula:

$$(\text{price threshold} \div \text{proponent's price}) \times \text{weighting} = \text{proponent's pricing points}$$

Note on Threshold: Cowichan Tribes will not be publishing the price threshold that will be used in this calculation. However, the threshold will be based upon the projected costs and budget available for the implementation, licensing, and support of their ERP for the next five years.

Instructions on How to Provide Pricing

- Proponents should submit their pricing information by completing the attached Pricing Sheet and including it in their proposals. This includes details for implementing and supporting the solution **over a 5-year period**.
- Rates must be provided in Canadian funds, inclusive of all applicable duties and taxes.
- Unless otherwise indicated in the requested pricing information, rates quoted by the proponent must be all-inclusive and must include all labour and material costs, all travel and carriage costs, all insurance costs, all costs of delivery, all costs of installation and set-up, including any pre-delivery inspection charges, and all other overhead, including any fees or other charges required by law.

Cowichan Tribes is also requesting that proponents provide resource rates in the event additional scope needs to be costed as part of the implementation.

APPENDIX C – SUBMISSION FORM

1. Proponent Information

Please fill out the following form, naming one (1) person to be the proponent's contact for the RFP process and for any clarifications or communication that might be necessary.	
Full Legal Name of Proponent:	
Any Other Relevant Name under which Proponent Carries on Business:	
Street Address:	
City, Province/State:	
Postal Code:	
Phone Number:	
Company Website (if any):	
Proponent Contact Name and Title:	
Proponent Contact Phone:	
Proponent Contact Email:	

2. Acknowledgment of Non-Binding Procurement Process

The proponent acknowledges that the RFP process will be governed by the terms and conditions of the RFP, and that, among other things, such terms and conditions confirm that this procurement process does not constitute a formal, legally binding bidding process (and for greater certainty, does not give rise to a Contract A bidding process contract), and that no legal relationship or obligation regarding the procurement of any good or service will be created between Cowichan Tribes and the proponent unless and until Cowichan Tribes and the proponent execute a written agreement for the Deliverables.

3. Ability to Provide Deliverables

The proponent has carefully examined the RFP documents and has a clear and comprehensive knowledge of the Deliverables required. The proponent represents and warrants its ability to provide the Deliverables in accordance with the requirements of the RFP for the rates set out in its proposal.

4. Non-Binding Pricing

The proponent has submitted its pricing in accordance with the instructions in the RFP. The proponent confirms that the pricing information provided is accurate. The proponent acknowledges that any inaccurate, misleading, or incomplete information, including withdrawn or altered pricing, could adversely impact the acceptance of its proposal or its eligibility for future work.

5. Addenda

The proponent is deemed to have read and taken into account all addenda issued by Cowichan Tribes prior to the Deadline for Issuing Addenda.

6. Communication with Competitors

For the purposes of this RFP, the word "competitor" includes any individual or organization, other than the proponent, whether or not related to or affiliated with the proponent, who could potentially submit a response to this RFP.

Unless specifically disclosed below under Disclosure of Communications with Competitors, the proponent declares that:

- (a) it has prepared its proposal independently from, and without consultation, communication, agreement, or arrangement with any competitor, including, but not limited to, consultation, communication, agreement, or arrangement regarding:
 - (i) prices;
 - (ii) methods, factors, or formulas used to calculate prices;
 - (iii) the quality, quantity, specifications, or delivery particulars of the Deliverables;
 - (iv) the intention or decision to submit, or not to submit, a proposal; or
 - (v) the submission of a proposal which does not meet the mandatory technical requirements or specifications of the RFP; and
- (b) it has not disclosed details of its proposal to any competitor and it will not disclose details of its proposal to any competitor prior to the notification of the outcome of the procurement process.

Disclosure of Communications with Competitors

If the proponent has communicated or intends to communicate with one (1) or more competitors about this RFP or its proposal, the proponent discloses below the names of those competitors and the nature of, and reasons for, such communications:

7. No Prohibited Conduct

The proponent declares that it has not engaged in any conduct prohibited by this RFP.

8. Conflict of Interest

The proponent must declare all potential Conflicts of Interest, as defined in Section 3.4.1 of the RFP. This includes disclosing the names and all pertinent details of all individuals (employees, advisers, or individuals acting in any other capacity) who (a) participated in the preparation of the proposal; **AND** (b) were employees of Cowichan Tribes within twelve (12) months prior to the Submission Deadline.

If the box below is left blank, the proponent will be deemed to declare that (a) there was no Conflict of Interest in preparing its proposal; and (b) there is no foreseeable Conflict of Interest in performing the contractual obligations contemplated in the RFP.

Otherwise, if the statement below applies, check the box.

- ☐ The proponent declares that there is an actual or potential Conflict of Interest relating to the preparation of its proposal, and/or the proponent foresees an actual or potential Conflict of Interest in performing the contractual obligations contemplated in the RFP.

If the proponent declares an actual or potential Conflict of Interest by marking the box above, the proponent must set out below details of the actual or potential Conflict of Interest:

9. Disclosure of Information

The proponent hereby agrees that any information provided in this proposal, even if it is identified as being supplied in confidence, may be disclosed where required by law or by order of a court or tribunal. The proponent hereby consents to the disclosure, on a confidential basis, of this proposal by Cowichan Tribes to the advisers retained by Cowichan Tribes to advise or assist with the RFP process, including with respect to the evaluation of this proposal.

Signature of Proponent Representative

Name of Proponent Representative

Title of Proponent Representative

Date

I have the authority to bind the proponent.